

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
MARITZA RODRIGUEZ, REYNALDO RIVERA,
AND JHONAS COLON,

Plaintiff designates
Bronx County as the place of trial

Plaintiffs,

The basis of the venue is where the
tort arose

-against-

SUMMONS

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, DONALD
SEHL, and JOHN or JANE DOE 1-10,

Defendant.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
July 16, 2019


SIMI & DEPAOLA, LLP
BY: **John K. Kouroupas, Esq.**
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 201
Bayside, New York 11361
(718) 281-0400

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

DONALD SEHL
NYPD DETECTIVE UNDER SHIELD NO.1527 and TAX REG. NO. 951232
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MARITZA RODRIGUEZ, REYNALDO RIVERA,
ANDD JHONAS COLON,

Plaintiffs,

Index No.:

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, DONALD
SEHL, and JOHN or JANE DOE 1-10,

Defendant.
-----X

Plaintiffs, MARITZA RODRIGUEZ, REYNALDO RIVERA, and JHONAS COLON, by
their attorneys, Sim & DePaola, LLP, for their complaint against the above Defendants, alleges
as follows:

1. The claim arises from an April 7, 2018 incident in which defendants, acting under color of state law, unlawfully arrested and detained MARITZA RODRIGUEZ ("Ms. Rodriguez"), REYNALDO RIVERA ("Mr. Rivera") and JHONAS COLON ("Mr. Colon"). Plaintiffs were subsequently charged with Criminal Possession of a Controlled Substance in the Seventh Degree and Unlawful Possession of Marijuana. As a result, Ms. Rodriguez, Mr. Rivera and Mr. Colon were deprived of their liberty, and caused to sustain physical and emotional injuries. Ms. Rodriguez, Mr. Rivera and Mr. Colon were wrongfully incarcerated for approximately two (2) days each, until they were released, on or about, April 8, 2018, after being arraigned.

2. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

3. Plaintiff MARITZA RODRIGUEZ ("Ms. Rodriguez") resides at 775 Eagle Avenue, Apartment 1G, Bronx, NY 10456.
4. Plaintiff REYNALDO RIVERA ("Mr. Rivera") resides at 7900 Queens Boulevard, Apartment 215, Elmhurst, Queens 11372.
5. Plaintiff JHONAS COLON ("Mr. Colon") resides at 775 Eagle Avenue, Apartment 1G, Bronx, NY 10456.
6. The Defendant City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.
7. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD") is responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
8. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
9. Defendant DONALD SEHL ("SEHL") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and

employee of the City of New York. Defendant Sehl was, at all times relevant herein, a detective, Shield Number 1527 and Tax Id. Number 951232, of NARBBX, 1 Police Plaza, New York, New York, 10038. Defendant Sehl is being sued in his individual and official capacities.

10. At all times relevant Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff's do not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1 through 10 but is within knowledge of the defendants.
11. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1 through 10 are being sued in their individual and official capacities.
12. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
13. Plaintiffs have served notices of claim, which have been deemed timely served *nunc pro tunc* by this Court.
14. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
15. Plaintiffs have complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
16. This action and associated claims have been timely commenced within all applicable statutes of limitations.

FACTUAL CHARGES

17. On April 7, 2018, at approximately 6:00 AM, Ms. Rodriguez, Mr. Rivera and Mr. Colon were inside of 775 Eagle Avenue, Apt. 4J, Bronx, NY 10467.
18. Ms. Rodriguez is a Hispanic woman, who speaks English.
19. Mr. Rivera is a Hispanic man, who does not speak any English.
20. Mr. Colon is a Hispanic man, who speaks English.
21. On said date, time, and location, Defendants, including Sehl and John or Jane Doe 1-6 (believed to be the first six NYPD officers, detectives or supervisors to enter the apartment, other than Defendant Sehl), entered said apartment pursuant to a warrant obtained via the use of fraud, perjury, the suppression of evidence, and/or the commission of acts in gross deviation from proper police procedure, namely the false affidavit and/or testimony submitted by Defendant Sehl and the false information offered by defendants' confidential informant.
22. Defendants, including Sehl, they did not provide full and truthful facts to the District Attorney's Office or the Presiding Judge to justify the issuing of a valid search warrant.
23. Defendants, including Sehl, illegally searched and seized Ms. Rodriguez, Mr. Rivera and Mr. Colon, without probable cause to do so, as they had committed no crimes or violations of the law.
24. Defendants, including Sehl and John or Jane Doe 1-6, committed multiple assault and batteries to Ms. Rodriguez, Mr. Rivera and Mr. Colon, including but not limited to, being handcuffed too tightly, forcibly grabbed, pushed, shoved, and slammed to the ground.
25. Defendants, including Sehl, slammed Mr. Rivera to the ground and put their knees in his back.

26. Defendants, including Sehl, told plaintiff Ms. Rodriguez to “shut the fuck up and lay on the fucking floor” and then did not let her get dressed immediately as she lay on the ground with no clothes on, except her pantyhose.
27. Defendant Sehl, a male officer, then dressed, or directed another male officer (John Doe 1) to dress, Ms. Rodriguez, in contravention of proper New York City Police Department Procedure, which requires a female officer to dress a female arrestee.
28. Defendants, including Sehl and John or Jane Doe 1-6), illegally searched said apartment, deliberately causing property damage to said location for no legitimate for doing so.
29. Defendants, including Sehl, did not have arrest warrants for Ms. Rodriguez, Mr. Rivera or Mr. Colon.
30. Defendants, including Sehl and John or Jane Doe 1-6), were fully aware, at all times, that they lacked probable cause to arrest Ms. Rodriguez, Mr. Rivera and Mr. Colon, because defendants never observed or possessed a reasonable belief that Plaintiffs committed any crimes or violations of the, including, but not limited to, Criminal Possession of a Controlled Substance in the Seventh Degree or Unlawful Possession of Marijuana.
31. Plaintiffs, Ms. Rodriguez, Mr. Rivera and Mr. Colon, were not in actual, constructive or statutory possession of any contraband, including the alleged controlled substances and prescription pills recovered from said apartment.
32. Any prescription pills found in said apartment, were legally prescribed to Plaintiffs, Ms. Rodriguez, Mr. Rivera and Mr. Colon by a medical doctor.
33. Defendants, including Sehl, never took the time to verify whether any prescription pills in the apartment were criminally possessed without a medical prescription, nor did they care to investigate the legality of any prescription drugs found in the apartment, despite being

repeatedly informed that documentary evidence in support of Plaintiffs' contention were within the apartment and/or readily accessible by other means.

34. Plaintiffs, Ms. Rodriguez, Mr. Rivera and Mr. Colon, did not violate any law or local ordinance, including, but not limited to, Criminal Possession of a Controlled Substance in the Seventh Degree or Unlawful Possession of Marijuana.
35. Defendants, including Sehl, were fully aware that there was no probable cause to believe prosecutions would succeed against Ms. Rodriguez, Mr. Rivera and Mr. Colon, as defendant were fully aware that Plaintiffs were completely innocent of any wrongdoing.
36. Defendants, including Sehl, arrested and caused criminal prosecutions to be initiated against Plaintiffs, not because Plaintiffs had committed any crimes or violations of the law, but because Plaintiffs are people of color, of a different national origin than defendants, and did not speak English well, if at all.
37. Defendants, including Sehl, discriminated against Plaintiffs by arresting, assaulting, battering, and initiating criminal prosecutions against them, solely because of Plaintiffs' race, ethnicity, national origin, immigration status, religion, gender or age.
38. Defendants, including Sehl, repeatedly insulted Plaintiffs during their encounter by disparaging and impugning Plaintiffs' immigration status, national origin, ethnicity, race and their lack of proficiency in the English language, indicative of defendants' discriminatory motivation and intent.
39. Plaintiffs, Ms. Rodriguez, Mr. Rivera and Mr. Colon, were each the targets of derogatory and profane language that evinced clear discriminatory predilections on behalf of Defendants, including Sehl.

40. Defendants, including Sehl, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the unlawful searching, assaulting, battering, seizing, arresting, initiating of criminal prosecutions and use of excessive force against Plaintiffs.
41. Defendants, including Sehl, would not have arrested, used excessive force and caused criminal prosecutions to be initiated against Plaintiffs, but for Plaintiffs' race, ethnicity, national origin, immigration status, religion, gender or age being different from that of defendants and that of the unknown male individual.
42. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors (John or Jane Doe 7-10) have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiffs' arrest without probable cause.
43. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
44. The instant arrest of Plaintiffs without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiffs.
45. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of Defendants.

46. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrests will reveal a history of Constitutional violations that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Ms. Rodriguez, Mr. Rivera and Mr. Colon.
47. At all times relevant hereto, Defendants, including Sehl, acted maliciously and with intent to injure Plaintiffs, as substantiated by their discriminatory rhetoric and overt acts in furtherance of their discriminatory ideations and tendencies, as well as the absence of any probable cause.
48. At all times relevant hereto, Defendants, including John or Jane Doe 1-6, Sehl, were involved in the decision to arrest Plaintiffs without probable cause or failed to intervene when they observed others arresting Plaintiffs without probable cause.
49. At all times relevant hereto, Defendants John or Jane Doe 1-6, Sehl, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, namely failing to properly investigate the claims of the unknown male individual, entering a residence without a warrant, probable cause or consent to do so and physically restraining and arresting Plaintiffs without probable cause, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiffs' criminal prosecutions.
50. As a direct and proximate result of the acts of defendants, including the City of New York, Plaintiffs suffered the following injuries and damages: violations of their rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and

suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

51. Plaintiffs, Ms. Rodriguez, Mr. Rivera and Mr. Colon, were placed in a van and eventually taken to the 47th Precinct, where they were each criminally processed.
52. Plaintiffs, Ms. Rodriguez, Mr. Rivera and Mr. Colon, were denied their liberty and unlawfully kept in custody over the course of two (2) days until they were released following their releases on their own recognizances.
53. The prosecutions of Plaintiffs ended when all the charges against each of them were dismissed and sealed.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

54. The above paragraphs are here incorporated by reference as though fully set forth.
55. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.
56. Plaintiffs were conscious of their confinement.
57. Plaintiffs did not consent to their confinement.
58. Plaintiffs' arrests and false imprisonment were not otherwise privileged.
59. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
60. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
61. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

- 62. The above paragraphs are here incorporated by reference as though fully set forth.
- 63. The Defendants, acting under color of state law, violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.
- 64. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
- 65. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.
- 66. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
- 67. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

- 68. The above paragraphs are here incorporated by reference as though fully set forth.
- 69. Defendants made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.
- 70. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching, thus battering them without their consent.

71. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
72. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
73. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

74. The above paragraphs are here incorporated by reference as though fully set forth.
75. The Defendants, acting under color of state law, violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.
76. Defendants engaged in and subjected Plaintiffs' to immediate harmful and/or offensive touching and battered him without their consent.
77. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
78. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

79. The above paragraphs are here incorporated by reference as though fully set forth.
80. Defendants initiated the prosecutions against Plaintiffs.

81. Defendants lacked probable cause to believe Plaintiffs were guilty or that prosecutions would succeed against them.
82. Defendants acted with malice.
83. The prosecutions were terminated in Plaintiffs' favor when the criminal charges against each of them were dismissed and sealed.
84. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
85. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
86. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

87. The above paragraphs are here incorporated by reference as though fully set forth.
88. Defendants, acting under color of state law, initiated the prosecution against Plaintiffs.
89. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.
90. Defendants acted with malice.
91. The criminal charges against Plaintiffs were dismissed and sealed as to each, representing terminations of the prosecutions in favor of the Plaintiffs.
92. Accordingly, Defendants violated Plaintiffs' Fourth Amendment rights.
93. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

94. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

95. The above paragraphs are here incorporated by reference as though fully set forth.
96. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiffs to compel the compliance or forbearance of some act.
97. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
98. Defendants intended to inflict substantial harm upon Plaintiffs.
99. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
100. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
101. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
102. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

103. The above paragraphs are here incorporated by reference as though fully set forth.

104. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to compel the compliance or forbearance of some act.
105. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
106. Defendants intended to inflict substantial harm upon Plaintiffs.
107. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
108. Defendants' actions deprived Plaintiffs' of their right to free from illegal searches and seizures, as well as their right not to be deprived of their liberty without due process of law.
109. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
110. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

111. Plaintiffs, as being of Hispanic ethnicity, descent and national origin, are members of a racial minority and protected classes.
112. Defendants discriminated against Plaintiffs on the basis of their race, national origin, ethnicity, or sex.
113. Defendants also selectively treated Plaintiffs as compared to others similarly situated to Plaintiffs.

114. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, religion, intent to inhibit or punish Plaintiffs' exercising of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.
115. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.
116. Defendants, motivated by discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.
117. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
118. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
119. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
120. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1983 and 1981 Against Individual Defendants

121. Plaintiffs, as being from Hispanic descent, ethnicity and national origin, are members of a racial minority and a protected class.
122. Defendants discriminated against Plaintiffs on the basis of their race, national origin, ethnicity, or sex.
123. Defendants also selectively treated Plaintiffs as compared to others similarly situated to Plaintiffs.
124. Defendants' selective treatment of Plaintiffs was based on impermissible considerations,

such as race, religion, intent to inhibit or punish Plaintiffs' exercising of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.

125. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.
126. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.
127. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
128. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
129. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1985 and 1986 Against Individual Defendants

130. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of the equal protection of the laws, or of the privileges and immunities under the laws.
131. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.
132. Plaintiffs sustained injuries to their persons and were deprived of rights or privileges of citizens of the United States.
133. Defendants' conspiracy was motivated by some racial, or otherwise class-based, invidious discriminatory animus.
134. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were

about to be committed or being committed, possessed the power to prevent or aid, and neglected to do so.

135. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
136. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

137. The above paragraphs are here incorporated by reference as though fully set forth.
138. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
139. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
140. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
141. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

142. The above paragraphs are here incorporated by reference as though fully set forth.

143. Those Defendants, acting under color of state law, that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
144. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
145. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
146. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
147. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTEENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

148. The above paragraphs are here incorporated by reference as though fully set forth.
149. Defendant City owed a duty of care to Plaintiffs to adequately hire, retain and supervise its employee defendants.
150. Defendant City breached that duty of care.
151. Defendant City placed defendants in a position where they could inflict foreseeable harm.
152. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.

153. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.
154. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
155. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTEENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

156. The above paragraphs are here incorporated by reference as though fully set forth.
157. Defendant City, under color of state law, maintained a policy, custom or practice that caused Plaintiffs to be deprived of their Constitutional right to free from illegal searches and seizures.
158. Defendant City’s illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
159. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City’s employees.
160. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiffs’ Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City’s employees.

161. Defendant City's conduct violated Plaintiffs' rights under the Fourth and Fourteenth Amendments to the United States Constitution.
162. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
163. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiffs' respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- q) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; together with the costs and disbursements of this action

Dated: Bayside, New York
July 16, 2019


S/M & DEPAOLA, LLP
By: John K. Kouroupas, Esq.
Attorneys for Plaintiffs
4240 Bell Blvd, Suite 201
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, **John K. Kouroupas**, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
July 16, 2019


JOHN K. KOUROUPAS, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MARITZA RODRIGUEZ, REYNALDO RIVERA, AND JHONAS COLON,

Plaintiffs,

-against-

CITY OF NEW YORK, individually and in their official capacities as New York City police officers, DONALD SEHL, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: JOHN K. KOUROUPAS
Attorneys for Plaintiff(s)
42-40 Bell Boulevard, Suite 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for